

Neutral Citations

2025 RJ-JP 41077

Equivalent Citations

citation codes .

**MONU PARASHAR @ GONU @ GOVIND S/O SH. SHIVRATAN v.
STATE OF RAJASTHAN**

Rajasthan High Court (Oct 9, 2025)

CASE NO.

CRLMB/9703/2025

JUDGES

- Sameer Jain

ATTORNEY

**HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR**

S.B. Criminal Miscellaneous Bail Application No. 9703/2025 Monu Parashar @
Gonu @ Govind S/o Sh. Shivratan, Aged About
24 Years, R/o Kila Chowk, Roopangarh, P.s. Roopangarh, Dist. Ajmer (Accused Is
Presently Confined At Central Jail, Ajmer). ----Petitioner

Versus

State Of Rajasthan, Through Pp

----Respondent

For Petitioner(s) : Mr. Sanjay Ganggwar

For Respondent(s) : Mr. Rhishi Raj Singh Rathore, PP

HON'BLE MR. JUSTICE SAMEER JAINJudgment

09/10/2025

1. The instant bail application has been filed under Section 483 BNSS on behalf of accused-applicants. The accused-applicant was arrested in connection with FIR No. 213/2024 registered at Police Station Roopangarh District Ajmer for the offence(s) under Sections 376D, 376(2)(n), 384, 506 IPC along with under Sections 3/4, 5(L)/6 POCSO Act.

2. Learned counsel for the accused-applicant has submitted that accused-applicant is from the same village as that of victim in question. It is further submitted that the accused- applicant was in acquaintance with the victim in question. It is further submitted that applicant is falsely implicated in the instant matter.

3. Further, it is submitted that the applicant is in custody ever since 26.03.2025 and charge-sheet has been filed in the instant matter. Moreover, no criminal antecedents are registered against the applicant. Furthermore, it is submitted that statements tendered by the mother of the victim are not supporting the story of the prosecution.

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4. Additionally, it is submitted that no document qua date of birth are produced and victim in question is major in terms of age. Lastly, it is submitted that trial would take time to conclude and no useful purpose would be served by keeping the accused-applicants behind bars till disposal of the case.

5. *Per contra* , learned Public Prosecutor has vehemently opposed the bail application and has submitted that allegations leveled against the accused are heinous in nature i.e., *group rape* upon the victim who is minor in terms of age. Further, it is submitted that date of birth is reflected in the statements tendered by the victim in question under Section 164 Cr.P.C., and same are supporting the story of the prosecution. Moreover, present matter is not only qua *rape* but also qua extortion of money.

6. Heard.

7. Considering the arguments advanced by the counsel for the parties and taking note of the fact that allegations levelled against the accused-applicant are heinous in nature i.e, *rape* upon the victim (minor in terms of age) and extortion and looking to the overall facts and circumstances of the case and material on record but without commenting on merits/demerits of the case, this Court is not inclined to allow the instant bail application of the accused-applicant.

8. Accordingly, the bail application under Section 483 BNSS is dismissed.

(SAMEER JAIN),J

Pooja /47